In the case of the Treason Trial, the three judges rose above their prejudices, their education, and their background. There is a streak of goodness in men that can be buried or hidden and then emerge unexpectedly. Justice Rumpff, with his aloof manner, gave the impression throughout the proceedings that he shared the point of view of the ruling white minority. Yet in the end, an essential fairness dominated his judgment. Kennedy was less conservative than his colleagues and seemed attracted by the idea of equality. Once, for example, he and Duma Nokwe flew on the same plane from Durban to Johannesburg, and when the airline bus to town refused to take Duma, Kennedy refused to ride in it as well. Judge Bekker always struck me as open-minded and seemed aware that the accused before him had suffered a great deal at the hands of the state. I commended these three men as individuals, not as representatives of the court or of the state or even of their race, but as exemplars of human decency under adversity.

Judge Bekker’s wife was a person sensitive to the needs of others. During the State of Emergency, she collected goods which she brought to the accused.

But the consequence of the government’s humiliating defeat was that the state decided never to let it happen again. From that day forth they were not going to rely on judges whom they had not themselves appointed. They were not going to observe what they considered the legal niceties that protected terrorists or permitted convicted prisoners certain rights in jail. During the Treason Trial, there were no examples of individuals being isolated, beaten, and tortured in order to elicit information. All of those things became commonplace shortly thereafter.